

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Bangaly Sumbundu, Mohammadou Touray and Amadou :
Diallo,: Index Number:
Plaintiffs, : Date Purchased:
: Date Filed:

-against- : SUMMONS

City of New York, New York City Police Department, :
Police Officer Eula Harris, Shield 9247 of the 44 Precinct, :
Police Officer Wilfredo Benitez, Shield 5619 of the 44 :
Precinct and New York City Police Officers John Doe, :: Plaintiff Sumbundu's
: residence is:
: 215 Alexander Avenue
: Bronx, NY 10454
Defendants

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: December 18, 2018
New York, NY

Yours, etc.,



LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Eula Harris, Shield 9247 of the 44 Precinct

Police Officer Wilfredo Benitez, Shield 5619 of the 44 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Bangaly Sumbundu, Mohammadou Touray and Amadou
Diallo,

Plaintiffs,

-against-

City of New York, New York City Police Department,
Police Officer Eula Harris, Shield 9247 of the 44 Precinct,
Police Officer Wilfredo Benitez, Shield 5619 of the 44
Precinct and New York City Police Officers John Doe,

Defendants.
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VERIFIED COMPLAINT

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Bangaly Sumbundu, (hereinafter referred to as "SUMBUNDU") resides in Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Mohammadou Touray, (hereinafter referred to as "TOURAY") resides in Bronx County, State of New York.
3. That at all times hereinafter mentioned, Plaintiff Amadou Diallo (hereinafter referred to as "DIALLO") resides in Bronx County, State of New York.
4. That at all times hereinafter mentioned, Police Officer Eula Harris, Shield 9247 of the 44 Precinct (hereinafter referred to as "HARRIS") was employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Detective Wilfredo Benitez, Shield 5619 of the 44 Precinct (hereinafter referred to as "BENITEZ") were employed by the New York City Police Department.

6. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the officers involved in the arrest of Plaintiffs, (hereinafter referred to as "DOES") were employed by the New York City Police Department.

7. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

8. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

9. On or about November 21, 2017 notice required by Municipal Law 50-E was given to City of New York, by personal service as to all Plaintiffs. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

10. On or about May 14, 2018 a hearing required by Municipal Law 50-H was conducted. At said hearing Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed

11. That on or about November 15, 2017 at approximately 9:30AM inside of 1310 Sheridan Avenue, Bronx NY, Plaintiffs were all leaving from visiting a mutual friend who resides at the

above location when HARRIS, BENITEZ and DOES stopped, handcuffed and arrested Plaintiffs.

12. That at all times on November 15, 2017, Plaintiff were permitted to be inside of 1310 Sheridan Avenue, Bronx, NY.

13. That at no time were Plaintiffs trespassing inside of 1310 Sheridan Avenue, Bronx NY.

14. That at no time did Plaintiffs engage in any unlawful or illegal conduct.

15. That after Plaintiffs were arrested, they were transported to the 44 Precinct.

16. That while at the 44 precinct, Plaintiffs were held in a cell with other males for several hours.

17. That after being held for several hours at the 44 precinct, Plaintiffs were transported to Central Booking, Bronx County Criminal Court, located at 215 East 161 Street, Bronx, NY.

18. That while inside of Central Booking Plaintiffs were forced to remain inside of a holding cell with numerous other males.

19. That while inside of Central Booking Plaintiffs were subjected to harassment from the other males inside of the cells.

20. That on or about November 16, 2017, Plaintiffs were arraigned in Bronx Count Criminal Court wherein each was released on their own recognizance.

21. That on and between November 16, 2017 and October 30, 2018 SUMBUNDU made several court appearances until his case was dismissed upon application of the Office of the Bronx County District Attorney.

22. That on and between November 16, 2017 and October 30, 2018 SUMBUNDU made several court appearances until his case was dismissed upon application of the Office of the Bronx County District Attorney.

23. That on and between November 16, 2017 and October 18, 2018 TOURAY made several court appearances until his case was dismissed upon application of the Office of the Bronx County District Attorney.

24. That on and between November 16, 2017 and October 30, 2018 DIALLO made several court appearances until his case was dismissed upon application of the Office of the Bronx County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

25. Plaintiff SUMBUNDU repeats, reiterates and realleges the allegations contained in paragraphs 1 through 24, as if more fully stated herein at length.

26. That Defendants acted with actual malice toward Plaintiff SUMBUNDU and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

27. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

28. That as a result of the actions by Defendants, Plaintiff SUMBUNDU was traumatized and fears his physical safety when she sees and encounters members of the New York City Police Department from that day and onward.

29. That as a result of the Defendants' actions, Plaintiff SUMBUNDU has been unable to sleep.

30. That as a result of the Defendants actions, Plaintiff SUMBUNDU was forced to miss multiple days of school.

31. That as a result of the Defendants' actions Plaintiff SUMBUNDU sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

32. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff SUMBUNDU as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

34. Defendants having no lawful authority to arrest Plaintiff SUMBUNDU, did, nevertheless, unlawfully arrest Plaintiff SUMBUNDU with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff SUMBUNDU is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

35. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. Defendants conspired to violate Plaintiff SUMBUNDU's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff SUMBUNDU is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

37. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. Plaintiff SUMBUNDU was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff SUMBUNDU to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff SUMBUNDU by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff SUMBUNDU. Plaintiff SUMBUNDU is thus entitled to compensatory and exemplary damages.

39. That during the pendency of the case, Defendants maliciously prosecuted SUMBUNDU by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

40. That during the pendency of the case, Defendants maliciously prosecuted SUMBUNDU by continuing to claim that Plaintiff was trespassing when they knew he had not. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

41. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. At all times pertinent hereto, HARRIS, BENITEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

43. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HARRIS, BENITEZ and DOES committed within the scope of their employment.

44. That the City of New York and New York City Police Department knew that HARRIS targeted members of the 44 precinct, specifically, people of African descent and continued to employ HARRIS.

45. That the City of New York and New York City Police Department knew that BENITEZ targeted members of the 44 precinct, specifically, people of African descent and continued to employ BENITEZ.

46. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Tyrone Igle in that Tyrone Igle brought a lawsuit for false arrest, false imprisonment and malicious prosecution under index number 302834/2015. Despite such, the City of New York and New York City Police Department continued to employ her.

47. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Moutawakil Ourotcha for False Personation on November 25, 2017 in that the arrest was declined to prosecuted by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

48. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Saibo Touray for Attempted Assault on December 2, 2017 in that the case was

dismissed on April 4, 2019 by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

49. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Shaquille Holder on September 24, 2011 for trespassing in his own building in that the case was dismissed by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ him.

50. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Halidou Omaru in that Mr. Omaru filed suit against BENITEZ for False Arrest under index number 25528/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

51. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kazeem Lhabik in that Mr. Lhabik filed suit against BENITEZ for False Arrest under index number 22060/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

52. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Olusegun Grant, Saibo Sidibeh and Muhammed Gumaneh for trespass on February 17, 2017 under index number 20014/2016. Despite such, the City of New York and New York City Police Department continued to employ him.

53. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kabine Kaba for Disorderly Conduct on September 22, 2017 under claim number

AS AND FOR AN FIFTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

105. Plaintiff DIALLO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 104 as if more fully stated herein at length.

106. That Defendants acted with actual malice toward Plaintiff DIALLO and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff DIALLO.

107. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

108. That as a result of the actions by Defendants, Plaintiff DIALLO was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

109. That as a result of the Defendants' actions, Plaintiff DIALLO has been unable to sleep.

110. That as a result of the Defendants' actions, Plaintiff DIALLO was forced to miss multiple days of work.

111. That as a result of the Defendants' actions, Plaintiff DIALLO was forced to miss multiple days of school.

112. That as a result of the Defendants' actions Plaintiff DIALLO sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

113. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 112, as if more fully stated herein at length.

2017PI032475. Despite such, the City of New York and New York City Police Department continued to employ him.

54. That the City of New York and New York City Police Department knew that BENITEZ assaulted Kabine Kaba by spraying him with pepper spray for absolutely no reason on September 22, 2017 in that the incident was captured on video. Despite such, the City of New York and New York City Police Department continued to employ him.

55. That the City of New York and New York City Police Department knew that its police officers, specifically, police officers assigned to the 44 precinct had a policy, practice and custom of falsely arresting innocent people for trespass when they knew such people were not violating any laws.

56. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Jawuan Hubbard, Shield 8746 and Police Officer Vivar Diego, Shield 5613, falsely arrested Deiondre Harris, Laquan Heyward, Joel Baba and Keshon George on October 4, 2014 for trespass when they had a legitimate right to be in the 1426 Walton Avenue.

57. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Francis Flynn, Shield 11320 and Police Officer Anthony Cassase, Shield 28721 falsely arrested Bilali Sidibeh, Muhammed Gumaneh, Mahamadou Hydera, Saibo Sidibeh, Mohamadou Jabbi, Banglay Jawara and Mamadou Diallo on March 26, 2016 for trespass when they had a legitimate right to be in the 1296 Sheridan Avenue.

58. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Natalia Abreu falsely arrested Shaquille

Holder on June 25, 2009 for trespass when they had a legitimate right to be in the 1503 Walton Avenue.

59. The City of New York and New York City Police Department's failure to stop this practice and custom constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT

60. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 59, as if more fully stated herein at length.

61. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff SUMBUNDU. Plaintiff SUMBUNDU is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

62. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 61, as if more fully stated herein at length.

63. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff SUMBUNDU.

64. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff SUMBUNDU.

AS AND FOR AN EIGHTH CAUSE OF ACTION AS AGAINST DEFENDANTS

65. Plaintiff TOURAY repeats, reiterates and realleges the allegations contained in paragraphs 1 through 64 as if more fully stated herein at length.

66. That Defendants acted with actual malice toward Plaintiff TOURAY and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff TOURAY.

67. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

68. That as a result of the actions by Defendants, Plaintiff TOURAY was traumatized and fears for her physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

69. That as a result of the Defendants' actions, Plaintiff TOURAY has been unable to sleep.

70. That as a result of the Defendants' actions, Plaintiff TOURAY was forced to miss multiple days of school.

71. That as a result of the Defendants' actions Plaintiff TOURAY sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

72. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 71, as if more fully stated herein at length.

73. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff TOURAY as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

74. Defendants having no lawful authority to arrest Plaintiff TOURAY, did, nevertheless, unlawfully arrest Plaintiff TOURAY with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff TOURAY is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

75. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 74, as if more fully stated herein at length.

76. Defendants conspired to violate Plaintiff TOURAY's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff TOURAY is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION AS DEFENDANTS

77. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 76, as if more fully stated herein at length.

78. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff TOURAY to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution of Plaintiff TOURAY by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff TOURAY. Plaintiff TOURAY is thus entitled to compensatory and exemplary damages.

79. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

80. That during the pendency of the case, Defendants maliciously prosecuted SUMBUNDU by continuing to claim that Plaintiff was trespassing when they knew he had not. Plaintiff is thus entitled to compensatory and exemplary damages.

AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

81. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 80, as if more fully stated herein at length.

82. At all times pertinent hereto, HARRIS, BENITEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

83. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HARRIS, BENITEZ and DOES committed within the scope of their employment.

84. That the City of New York and New York City Police Department knew that HARRIS targeted members of the 44 precinct, specifically, people of African descent and continued to employ HARRIS.

85. That the City of New York and New York City Police Department knew that BENITEZ targeted members of the 44 precinct, specifically, people of African descent and continued to employ BENITEZ.

86. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Tyrone Igle in that Tyrone Igle brought a lawsuit for false arrest, false imprisonment and malicious prosecution under index number 302834/2015. Despite such, the City of New York and New York City Police Department continued to employ her.

87. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Moutawakil Ourotcha for False Personation on November 25, 2017 in that the arrest was declined to prosecuted by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

88. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Saibo Touray for Attempted Assault on December 2, 2017 in that the case was dismissed on April 4, 2019 by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

89. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Shaquille Holder on September 24, 2011 for trespassing in his own building in

that the case was dismissed by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ him.

90. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Halidou Omaru in that Mr. Omaru filed suit against BENITEZ for False Arrest under index number 25528/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

91. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kazeem Lhabik in that Mr. Lhabik filed suit against BENITEZ for False Arrest under index number 22060/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

92. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Olusegun Grant, Saibo Sidibeh and Muhammed Gumaneh for trespass on February 17, 2017 under index number 20014/2016. Despite such, the City of New York and New York City Police Department continued to employ him.

93. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kabine Kaba for Disorderly Conduct on September 22, 2017 under claim number 2017PI032475. Despite such, the City of New York and New York City Police Department continued to employ him.

94. That the City of New York and New York City Police Department knew that BENITEZ assaulted Kabine Kaba by spraying him with pepper spray for absolutely no reason on September

22, 2017 in that the incident was captured on video. Despite such, the City of New York and New York City Police Department continued to employ him.

95. That the City of New York and New York City Police Department knew that its police officers, specifically, police officers assigned to the 44 precinct had a policy, practice and custom of falsely arresting innocent people for trespass when they knew such people were not violating any laws.

96. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Jawuan Hubbard, Shield 8746 and Police Officer Vivar Diego, Shield 5613, falsely arrested Deiondre Harris, Laquan Heyward, Joel Baba and Keshon George on October 4, 2014 for trespass when they had a legitimate right to be in the 1426 Walton Avenue.

97. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Francis Flynn, Shield 11320 and Police Officer Anthony Cassase, Shield 28721 falsely arrested Bilali Sidibeh, Muhammed Gumaneh, Mahamadou Hydera, Saibo Sidibeh, Mohamadou Jabbi, Banglay Jawara and Mamadou Diallo on March 26, 2016 for trespass when they had a legitimate right to be in the 1296 Sheridan Avenue.

98. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Natalia Abreu falsely arrested Shaquille Holder on June 25, 2009 for trespass when they had a legitimate right to be in the 1503 Walton Avenue.

99. The City of New York and New York City Police Department's failure to stop this practice and custom constitutes a willful and wanton indifference and deliberate disregard for

human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

100. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 99, as if more fully stated herein at length.

101. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff TOURAY. Plaintiff TOURAY is thus entitled to compensatory exemplary damages.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

102. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 101, as if more fully stated herein at length.

103. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff TOURAY.

104. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff TOURAY.

114. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff DIALLO as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

115. Defendants having no lawful authority to arrest Plaintiff DIALLO, did, nevertheless, unlawfully arrest Plaintiff DIALLO with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff DIALLO is entitled to both compensatory and exemplary damages.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

116. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 115, as if more fully stated herein at length.

117. Defendants conspired to violate Plaintiff DIALLO's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff DIALLO is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR AN EIGHTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

118. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 117, as if more fully stated herein at length.

119. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff DIALLO to suffer physical and severe emotional distress for which the Defendants are

individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution of Plaintiff DIALLO by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff DIALLO.

Plaintiff DIALLO is thus entitled to compensatory and exemplary damages.

120. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested.

Plaintiff is thus entitled to compensatory and exemplary damages.

121. That during the pendency of the case, Defendants maliciously prosecuted SUMBUNDU by continuing to claim that Plaintiff was trespassing when they knew he had not. Plaintiff is thus entitled to compensatory and exemplary damages.

AS AND FOR A NINETEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

122. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 121, as if more fully stated herein at length.

123. At all times pertinent hereto, HARRIS, BENITEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

124. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HARRIS, BENITEZ and DOES committed within the scope of their employment.

125. That the City of New York and New York City Police Department knew that HARRIS targeted members of the 44 precinct, specifically, people of African descent and continued to employ HARRIS.

126. That the City of New York and New York City Police Department knew that BENITEZ targeted members of the 44 precinct, specifically, people of African descent and continued to employ BENITEZ.

127. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Tyrone Igle in that Tyrone Igle brought a lawsuit for false arrest, false imprisonment and malicious prosecution under index number 302834/2015. Despite such, the City of New York and New York City Police Department continued to employ her.

128. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Moutawakil Ourotcha for False Personation on November 25, 2017 in that the arrest was declined to prosecuted by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

129. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Saibo Touray for Attempted Assault on December 2, 2017 in that the case was dismissed on April 4, 2019 by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

130. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Shaquille Holder on September 24, 2011 for trespassing in his own building in that the case was dismissed by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ him.

131. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Halidou Omaru in that Mr. Omaru filed suit against BENITEZ for False Arrest under index number 25528/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

132. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kazeem Lhabik in that Mr. Lhabik filed suit against BENITEZ for False Arrest under index number 22060/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

133. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Olusegun Grant, Saibo Sidibeh and Muhammed Gumaneh for trespass on February 17, 2017 under index number 20014/2016. Despite such, the City of New York and New York City Police Department continued to employ him.

134. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kabine Kaba for Disorderly Conduct on September 22, 2017 under claim number 2017PI032475. Despite such, the City of New York and New York City Police Department continued to employ him.

135. That the City of New York and New York City Police Department knew that BENITEZ assaulted Kabine Kaba by spraying him with pepper spray for absolutely no reason on September 22, 2017 in that the incident was captured on video. Despite such, the City of New York and New York City Police Department continued to employ him.

136. That the City of New York and New York City Police Department knew that its police officers, specifically, police officers assigned to the 44 precinct had a policy, practice and custom of falsely arresting innocent people for trespass when they knew such people were not violating any laws.

137. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Jawuan Hubbard, Shield 8746 and Police Officer Vivar Diego, Shield 5613, falsely arrested Deiondre Harris, Laquan Heyward, Joel Baba and Keshon George on October 4, 2014 for trespass when they had a legitimate right to be in the 1426 Walton Avenue.

138. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Francis Flynn, Shield 11320 and Police Officer Anthony Cassase, Shield 28721 falsely arrested Bilali Sidibeh, Muhammed Gumaneh, Mahamadou Hydara, Saibo Sidibeh, Mohamadou Jabbi, Banglay Jawara and Mamadou Diallo on March 26, 2016 for trespass when they had a legitimate right to be in the 1296 Sheridan Avenue.

139. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Natalia Abreu falsely arrested Shaquille Holder on June 25, 2009 for trespass when they had a legitimate right to be in the 1503 Walton Avenue.

140. The City of New York and New York City Police Department's failure to stop this practice and custom constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A TWENTIETH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

141. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 140, as if more fully stated herein at length.

142. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff DIALLO. Plaintiff DIALLO is thus entitled to compensatory exemplary damages.

AS AND FOR A TWENTY-FIRST CAUSE OF ACTION AS AGAINST DEFENDANTS

143. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 142, as if more fully stated herein at length.

144. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff DIALLO.

145. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff DIALLO.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful conduct of the Defendants' actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of

this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful conduct of the Defendants' actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the fifteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the sixteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the seventeenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

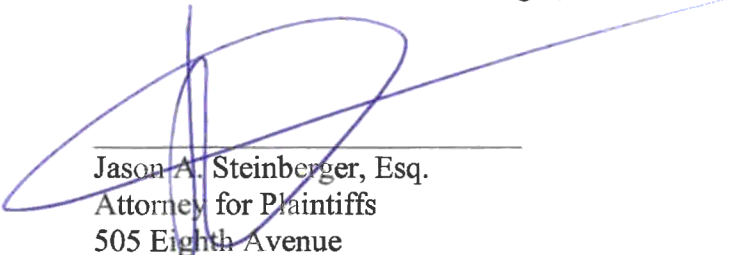
On the eighteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful conduct of the Defendants' actions;

On the nineteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the twentieth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the twenty-first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

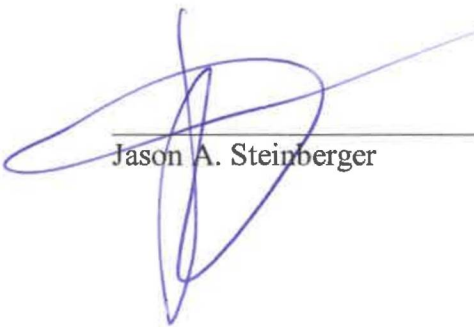


Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: August 31, 2019



Jason A. Steinberger

**Index Number:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

BANGALY SUMBUNDU, MOHAMMADOU TOURAY AND AMADOU DIALLO,

Plaintiffs

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER EULA HARRIS, SHIELD 9247 OF THE 44 PRECINCT, POLICE OFFICER
WILFREDO BENITEZ, SHIELD 5619 OF THE 44 PRECINCT AND NEW YORK CITY
POLICE OFFICERS JOHN DOE,**

Defendant.

SUMMONS AND COMPLAINT

LAW OFFICES OF JASON A. STEINBERGER, LLC
505 Eighth Avenue
Suite 701
New York, NY 10018

To:
Attorney (s) for Defendant(s)

Service of a copy of the within _____ is hereby admitted.

Dated: _____
Attorney(s) for

PLEASE TAKE NOTICE

☐ that the within is a (certified) true copy of
☐ entered in the office of the clerk of the within named Court on

**NOTICE
OF ENTRY**

☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.
NOTICE OF _____
SETTLEMENT at _____
on _____

Dated:

200 , at m.

**JASON A. STEINBERGER, ESQ.
505 Eighth Avenue, Suite 701
New York, NY 10018**

To:
Attorney(s) for